

Harish Chandra v. State of U.P. (electricity-dues citation; para 6.8 remittal)

Allahabad High Court · Division Bench · 2 August 2022 · WRIT - C No. - 21777 of 2022 · **Writ disposed; liberty to file para 6.8 objection with stay of coercive action.**

HEADNOTE

Without deciding merits, the Court disposed of a writ against a Tehsildar electricity-dues citation and two demand notices, granting liberty to object under Para 6.8 of the U.P. Electricity Supply Code, 2005, with a time-bound hearing and a short stay of coercive recovery.

FACTUAL SUMMARY

Harish Chandra approached the Allahabad High Court seeking certiorari to quash a Tehsildar, Basti citation dated 20 June 2022 demanding Rs. 1,56,513 as electricity dues, and demand notices dated 24 February 2021 (letters 750 and 751) requiring deposit of Rs. 1,27,309 and Rs. 29,144. Counsel for the power distribution corporation stated on instructions that the petitioner could file an objection to the impugned demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

para 6.8 objection as alternate remedy

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent No. 2 within four weeks; if so submitted, it shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. No coercive action on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against electricity-dues citation and demand notices disposed by relegating the consumer to a Para 6.8 objection, to be decided in accordance with law after hearing, without any merits ruling on the demand. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Court directed a time-bound Para 6.8 objection and barred coercive recovery for eight weeks or until that objection is decided, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY-DUES CITATION AND DEMAND NOTICES

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1